

tion (b), he will clearly be answerable to the *cestuis que trust* for the amount of the *devastavit*.

23 & 24 Vict. c. 145. — Executors under wills *executed after the 28th August, 1860*, [were by Lord Cranworth's Act] expressly authorised "to accept any composition, or any security, real or personal, for any debts due to the deceased, and to allow any time for payment of any such debts as they should think fit, and also to compromise, compound, or submit to arbitration all debts, accounts, claims and things whatsoever relating to the estate of the deceased, without being responsible for any loss to be occasioned thereby" (c).

[44 & 45 Vict. c. 41. — But this section has been repealed and its place supplied by the Conveyancing and Law of Property Act, 1881, which as to executorships and trusts constituted or created either before or after the commencement of the Act provides by sect. 37, that (1) "an executor may pay or allow any debt or claim on any evidence that he thinks sufficient"; (2) "an executor, or two or more trustees acting together, or a sole acting trustee where, by the instrument, if any, creating the trust, a sole trustee is authorised to execute the trusts and powers thereof, may, if and as he or they think fit, accept any composition, or any security, real or personal, for any debt, or for any property, real or personal, claimed, and may allow any time for payment of any debt, and may compromise, compound, abandon, submit to arbitration, or otherwise settle, any debt, account, claim, or thing whatever relating to the testator's estate or to the trust," and may execute and do all such releases and things as may seem expedient without being responsible for any loss occasioned by anything done in good faith. But as regards trustees the section is subject to any contrary intention expressed in the instrument creating the trust (d).

In exercising the powers of this section in a case where

Wiles v. Gresham, 5 De G. M. & G. 770. A trustee is not liable for omitting to compound; *Ex parte Ogle*, 8 L. R. Ch. App. 715, *per Cur.*

(b) *Re Alexander*, 13 Ir. Ch. Rep. 137.

[This section was held not to be confined to claims in the nature of debts, but to extend to claims of legatees, *Re Warren*, 53 L. J. N. S. Ch. 1016; 51 L. T. N. S. 561; 32 W. R. 916.]

[(d) 44 & 45 Vict. c. 41, ss. 37,

(c) 23 & 24 Vict. c. 145, s. 30. 71.]